

The demurrer to cause of action one is overruled.

Negligence (c/a 3)

The County argues that the negligence claim fails because Plaintiff has not alleged a statutory basis for liability against the county. Plaintiff does not dispute that he needs to allege a statutory basis for liability against the County, but asks for leave to amend. Plaintiff argues that he can use his DOE allegations to include the responsible County employee.

It may be possible for Plaintiff to add a County employee as a DOE defendant, however, additional allegations supporting liability against the County will be needed. As the County points out in reply, Plaintiff will need to identify the statutory basis for liability against the County and allege facts supporting liability with particularity. (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802; *Lopez v. Southern Cal. Rapid Transit District* (1985) 40 Cal.3d 780, 795.)

The demurrer to cause of action three is sustained with leave to amend.

15. 9:00 AM CASE NUMBER: C25-02730
CASE NAME: TADEUSZ WYRZYKOWSKI VS. CSW CONSTRUCTION GROUP
***HEARING ON MOTION IN RE: STRIKE DECLARATION**
FILED BY: WYRZYKOWSKI, TADEUSZ
TENTATIVE RULING:

Before the Court is Plaintiff's Motion to Strike Declaration.

Plaintiff's Motion is **denied** as set forth below.

Procedural History

Plaintiff filed his Complaint on September 29, 2025. The operative First Amended Complaint (FAC) was filed on October 20, 2025. On December 1, 2025, Defendant filed a Declaration of Demurring Party in Support of Automatic Extension – the declaration at issue in this motion. On December 8, 2025, Plaintiff filed a Proof of Service of Summons that asserts that the summons, complaint, and FAC were personally served on Defendant on October 18, 2025.

On January 20, 2026, Plaintiff filed a Request for Entry of Default on the Complaint filed on September 29, 2025. The Default was entered on that same date. On January 23, 2026, Defendant filed a motion to set aside the default. On January 26, Plaintiff filed a motion to sustain default, as well as the instant motion to strike the December 1 declaration by Defendant's counsel.

On April 30, the Court granted Defendant's motion to set aside the default. On May 7, the Court denied Plaintiff's motion to sustain the default.

Analysis

Initially, it is unclear upon what legal authority Plaintiff bases his motion to "strike declaration." While Plaintiff cites various federal, state, civil, and criminal codes, he does not explain how any of them

support his motion to strike defense counsel's form declaration of demurring party in support of automatic extension (CIV-141). The arguments also appear to mostly mirror those made by Plaintiff in his motion to sustain default, which this Court already rules upon.

The Court already addressed the issues raised in this motion in its May 7, 2026, order relating to Plaintiff's motion to sustain default. That order, denying Plaintiff's motion, was uncontested by Plaintiff. The same reasoning supports denial of the instant motion, and the reasoning and rationale are incorporated herein.

Conclusion

Plaintiff's motion to strike declaration is **denied**.

16. 9:00 AM CASE NUMBER: C25-02965
CASE NAME: MICHAEL CARPENTER VS. NICK OTT
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO NICHOLAS S. SALTER FOR DEF SERA OTT
FILED BY: OTT, SERA
TENTATIVE RULING:

The motion was withdrawn. This case has been assigned to Department 16. Further Case Management Conference is set for November 17, 2026.

17. 9:00 AM CASE NUMBER: MSC20-02134
CASE NAME: TERESA NEENO VS. BARRY HACK
***HEARING ON MOTION IN RE: STAY PENDING APPEAL ON SHORTENED TIME**
FILED BY: KINDER, JUSTIN S.
TENTATIVE RULING:

Defendants' motion to stay proceedings in this action and stay enforcement of judgment pending appeal is **granted in part and denied in part**. The motion is granted as to recordation of the judgment or any easement instrument derived from the judgment. The motion is denied as to the hearing motion to tax costs, which shall proceed as scheduled on May 28, 2026.

Background

Plaintiff Teresa Neeno filed this action seeking a quiet title declaration of an equitable easement to access her property now designated as 4784 Venner Road in Martinez, which had no legal vehicular access without an easement over portions of the privately owned roads in the adjacent Muir Oaks subdivision. The Defendants are the owners of the Muir Oaks parcels underlying the roadways over which Plaintiff sought the easement.

Following a multi-day bench trial, the Court issued its Final Statement of Decision on the bifurcated first phase of trial, entering judgment in favor of Plaintiff Teresa Neeno on her second amended complaint and against Defendants on their cross-complaints (other than the Hjortsvang cross